

		Finally, the Case Management Conference is VACATED. The jury trial date of June 25, 2027, remains. Fadly to give notice.
8.	Fidelity National Title Insurance Company vs. Cal-Tex Acquisition IV, LLC 23-01352435	Motion for Summary Judgment and/or Adjudication Plaintiff Fidelity National Title Insurance Company's motion for summary judgment, or alternatively, summary adjudication, is DENIED. (Code Civ. Proc., § 437c [authorizing motion].) Summary adjudication is denied because moving party's separate statement does not "separately identify ... <u>[e]ach cause of action</u> ... that is the subject of the motion," or "[e]ach supporting material fact claimed to be without dispute <u>with respect to the cause of action</u> ... that is the subject of the motion." (Cal. Rules of Court, Rule 3.1350, subd. (d); emphasis added; see also <i>Cadlo v. Owens-Illinois, Inc.</i> (2004) 125 Cal.App.4th 513, 523 [court's discretion to deny summary adjudication based on failure to comply with separate statement requirements].) Moving party's requests to consider its "Amended Separate Statement" filed with the Reply (ROA 198), and/or to continue the hearing for a response, are DENIED. (<i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-1538 [ordinarily, new arguments / evidence presented for the first time on Reply are not considered, unless the opposing party has notice and an opportunity to respond]; Code Civ. Proc., § 437c, subds. (a)(2) [motion for summary judgment / adjudication requires 81 days' notice], (a)(3) [hearing must be within 30 days of 9-4-26 trial absent good cause, not present here]; <i>Robinson v. Woods</i> (2008) 168 Cal.App.4th 1258, 1262 ["trial courts do not have authority to shorten the minimum notice period for summary judgment hearings"].) Summary judgment is denied due to triable issues regarding causation and damages, which are essential elements of each cause of action in moving plaintiff's First Amended Complaint. (Code Civ. Proc., § 437c, subd. (p)(1) [burden].) As to the 1st cause of action for breach of [implied] contractual indemnity and 2nd cause of action for breach of contract for benefit of third person, moving plaintiff's evidence indicates the existence and breach of an indemnity obligation on defendants' part, based on defendants' execution of an "Owner's Declaration" and "Owner's Affidavit (Commercial)" denying knowledge of any "pending court action affecting the title," and/or any "persons or entities that assert an ownership interest in the Land" (Exs. J and K to moving papers), despite knowledge of a pending action entitled <i>NQR Corp. v. Caltex Acquisition IV, LLC</i>, Orange County Superior Court Case No. 2020-